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California Commentary: Assembly Democrats declare war on Proposition 13

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Unicorns don't exist in the real world and taxpayer heroes do not exist in the majority in the California Assembly. Despite warnings from a massive coalition of taxpayer advocates, real estate interests and business groups, 56 members of the California Legislature just passed two of the most destructive bills possible by declaring war on Proposition 13.

How harmful to Proposition 13 are these two proposals? We've never seen worse.

Assembly Constitutional Amendment 1 is a direct attack on Proposition 13 that would remove the taxpayer protection of the two-thirds vote of the electorate required to pass local special taxes. If this measure is enacted, local taxes and bonds for "infrastructure" (nearly everything) and public housing projects would pass with just 55% of the vote instead of 66.67%. This makes it easier to raise taxes and your taxes could go up after every election.

At the same time that ACA 1 would make it easier to raise your taxes, Assembly Constitutional Amendment 13 would make it much harder to do anything about it. ACA 13 is a brazen attempt to change the rules for passing constitutional amendments that reinforce the provisions of Proposition 13.

Particularly stunning was the abandonment of Proposition 13 by several Democrats who have previously advertised themselves as being pro-taxpayer moderates. This includes Joaquin Arambula, Jesse Gabriel, Rebecca Bauer-Kahan, Tasha Boerner, Blanca Rubio, Sabrina Cervantes, Brian Maienschein, Al Muratsuchi, Cottie Petrie-Norris (voted yes on ACA 13 and didn't vote on ACA 1), Avelino Valencia (voted yes on ACA 13 and didn't vote on ACA 1), James Ramos (voted yes on ACA 13 and didn't vote on ACA 1), Carlos Villapudua (voted yes on ACA 1 but didn't vote on ACA 13) and Sharon Quirk Silva (voted yes on ACA 1 but voted no on ACA 13). They have now been exposed as being as anti-taxpayer as any other representative in the California Capitol.

There is no limit to the range of special taxes that would be authorized under ACA 1: local sales taxes, parcel taxes (special property tax levies not limited to Prop 13's 1% limit), real estate transfer taxes, and many more.

Even worse ACA 1 lowers the two-thirds vote for local bonds repaid only by property owners. That two-thirds vote requirement has existed since 1879! For more than 140 years it has been a check against excessive property taxes and bonded indebtedness that creates a lien on real property.

ACA 13 is just as bad as ACA 1. It is a devious attempt to stop the Taxpayer Protection and Government Accountability Act from passing when it's on the ballot in November 2024. The Taxpayer Protection and Government Accountability Act is our initiative constitutional amendment that will restore the Proposition 13 protections that have been eroded by the courts. But ACA 13 would create special rules that make it harder to pass citizen initiatives like this one. If ACA 13 is enacted, the Taxpayer Protection and Government Accountability Act would require a two-thirds vote to pass instead of the simple majority vote that has been required for all other constitutional amendments since statehood.

Taxpayer Advocates, business groups and a coalition of hundreds of organizations need your help as these two dangerous measures come up for a vote in the California Senate. We're asking all homeowners, taxpayers, and business owners to contact their state senator and demand that they reject both ACA 1 and ACA 13. To do otherwise will communicate to their constituents that they are focused only on raising taxes and care little for the plight of hardworking families in their district.

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Orange County Taxpayers Association.

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